

HOUSE No. 4645

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 21, 2025.

The committee on Bills in the Third Reading, to whom was referred the Bill relative to assault and battery upon a transit worker (House, No. 1877), reports recommending that the same be amended by substitution of the accompanying bill (House, No. 4645), and that when so amended the same will be correctly drawn.

For the committee,

THOMAS P. WALSH.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to assault and battery upon a transit worker.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 13D of chapter 265 of the General Laws is hereby amended by striking out the
2 first paragraph and inserting in place thereof the following paragraph:-

3 Whoever commits an assault and battery, including assault and battery by means of a
4 bodily substance, upon any public employee, including but not limited to a public transit worker,
5 when such person is engaged in the performance of their duties at the time of such assault and
6 battery, shall be punished by imprisonment for not less than 90 days nor more than 2½ years in a
7 house of correction or by a fine of not less than \$500 nor more than \$5,000. For the purposes of
8 this section, “bodily substance” shall mean any human secretion, discharge or emission
9 including, but not limited to, blood, saliva, mucous, semen, urine or feces.